

Factual Causation (1)

Recap

Negligence has three elements:

1. D owed C a duty of care;
2. D breached that duty;
3. D's breach caused damage which is not too remote.



The 'but-for' test

Barnett v Chelsea & Kensington Hospital [1969] 1 QB 428

- ❑ During the night a hospital Emergency Department doctor sent a patient away without examining or treating him.
- ❑ He told the patient to see his own doctor the next morning.
- ❑ The patient died shortly afterwards.
- ❑ Doctor clearly negligent. BUT ... even if the doctor had seen the patient, he would have died anyway.
- ❑ Held: no causation, because 'but-for' D's negligence C would still have been injured

Robbins v LB Bexley [2013] EWCA (Civ) 1233



Facts:

- ❑ Council negligently failed to chop down trees which damaged C's property.
- ❑ Had they chopped down 25% they would not have been negligent, but the damage would still have occurred.
- ❑ In reality, if they did *any* chopping, they would have chopped down at least 70%, which would have prevented the damage.

Robbins v LB Bexley [2013] EWCA (Civ) 1233



Held:

- ☐ Council liable.
- ☐ Question for the court is NOT: 'if D had done what was required not to be negligent would the damage have occurred?'
- ☐ Question for the court IS: 'if D had done what they were likely to do if they had not been negligent, then would the damage have occurred?'

Problem cases

1. Material contribution to injury
2. Material contribution to the risk of injury
3. Loss of a chance

Two crucial distinctions

Contribution to injury v contribution to risk of injury

- ❑ Contribution to injury = it is possible to know whether D's negligence was one of the causes of C's injury
- ❑ Contribution to risk = it is impossible to know whether D's negligence was one of the causes of C's injury

Divisible v indivisible injuries

- ❑ Divisible injury = rational basis for apportionment of causal responsibility
- ❑ Indivisible injury = no rational basis for apportionment of causal responsibility

1. Material Contribution to Injury



The setup: material contribution to injury

All cases in this category share common features:

- We know that D's negligence was one of the material causes of C's injury
- BUT ... there are also other material causes of C's injury which would have been enough to cause some injury on their own

1(a): material contribution to divisible injury



- Divisible = we know how much worse the injury gets as a result of its different causes
- In these cases, D is only liable to the extent they contributed to the injury

1(a): *Bonnington Castings v Wardlaw* [1956] AC 613



Facts:

- ❑ C exposed to dust at work, leading to lung disease
- ❑ Some of the dust was non-negligent (innocent dust)
- ❑ Some of the dust was negligent (guilty dust)

Held:

- ❑ D liable, because material contribution to injury

1(a): *Holtby v Bringham & Cowan* [2000] 3 All ER 421



- ❑ C negligently exposed to asbestos by several employers, developing asbestosis
- ❑ Held: D liable only for their contribution, not the whole thing

Effect:

1. Where D materially contributes to C's injury;
2. and the injury is **divisible** (i.e. we know how much worse it gets as a result of its different causes);
3. then, D is only liable to the extent they contributed to the injury.

1(a): really just the standard 'but-for' test



- “Though the language of ‘material contribution to damage’ is sometimes used here, this is unhelpful in so far as it may give the impression that a departure from the but-for test is being recognised in this type of case.”
- “In short, where the final condition is divisible there is no problem with establishing that a contribution is a necessary, that is but-for cause of part of that condition. The only problem here is forensic and has to do with the quantum of damages ...”

(Stapleton & Steel, ‘Causes and Contributions’)

1(b): material contribution to indivisible injury



- Indivisible = no rational basis for apportionment of causal responsibility
- In these cases D is liable in full
- This is a departure from the ordinary 'but-for' principles

1(b): *Bailey v MOD* [2008] EWCA Civ 883



Facts:

- ❑ D's negligence caused C to be particularly weak after an operation.
- ❑ As a result of this tortious weakness combined with 'innocent' weakness from her existing condition, C choked on her own vomit.
- ❑ This caused a heart attack, which led to C suffering brain damage.

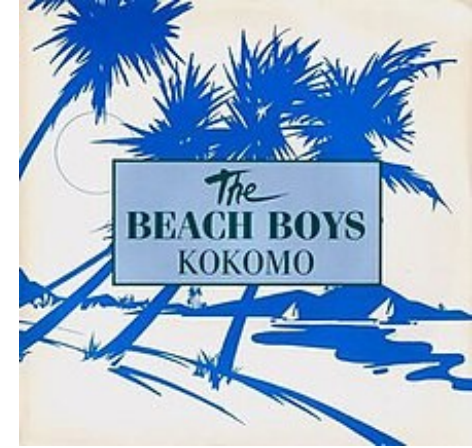


1(b): *Bailey v MOD* [2008] EWCA Civ 883

Held:

- ❑ D materially contributed to C's weakness, which led to C's injury
- ❑ C's injury was indivisible – i.e. impossible know how much worse the injury gets as a result of its different causes
- ❑ D liable in full

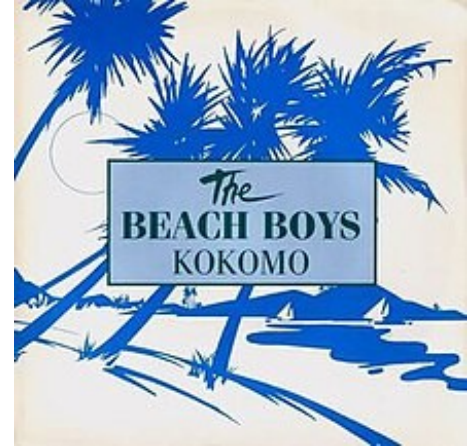
1(b): *Williams v Bermuda Hospitals* [2016] UKPC 4



Facts:

- ❑ C suffered injury to their heart and lungs as the result of complications in surgery.
- ❑ These complications were caused by an infection, which had been worsened by D's negligence in delaying treatment.

1(b): *Williams v Bermuda Hospitals* [2016] UKPC 4



Held:

- ☐ D's delay in treatment had materially contributed to C's infection, which led to C's injury
- ☐ C's injury was indivisible – i.e. impossible know how much worse the injury gets as a result of its different causes
- ☐ D liable in full

1(b): not the standard 'but-for' test

“since ... the court is not holding that the negligence was a but for cause of the damage (but only that it contributed to a condition or state of affairs that was) there is then no escaping the conclusion that in this context the material contribution test is not merely an adaptation of the but for test but a departure from it.”

(Winfield & Jolowicz, *Tort*)

Tea scenario #1



- ❑ D1, D2, and D3 each add a drop of salmonella to C's tea
- ❑ Suppose that for each drop of salmonella, C will have another week of food poisoning
- ❑ C drinks the tea and get food poisoning for 3 weeks

Result: each D is liable only for one week of food poisoning, as that is what they each caused (standard 'but-for')



Tea scenario #2

- ❑ D1, D2, and D3 each add a drop of deadly poison to C's tea
- ❑ Suppose that each drop of poison would, alone, kill C
- ❑ C drinks the tea and dies

Result: each D is liable entirely for C's death (departure from 'but-for')

Criticism of *Bailey* and *Williams*

“What is in any case clear is that these decisions [*Bailey* and *Williams*] have given rise to significant confusion and threaten unnecessarily to complicate the law in this area. It is to be hoped that before long the Supreme Court will be given an opportunity to conduct a full review of this question.”

(Winfield & Jolowicz, *Tort*)



2. Material Contribution to Risk of Injury

The setup: material contribution to risk of injury

- ❑ Contribution to injury = it is possible to know whether D's negligence was one of the causes of C's injury
- ❑ Contribution to risk = it is impossible to know whether D's negligence was one of the causes of C's injury

So, in all these cases, although we know D's negligence increased the chance of C's injury, it is **impossible to know** whether D's negligence actually was the cause

Tea scenario #3???



- ☐ D1, D2, and D3 each add a drop of kryptonite to C's tea
- ☐ Suppose that each time you drink a drop of kryptonite you have a 1% chance of being poisoned. Sometimes you are fine, but 1% of the time you die.
- ☐ C drinks the tea, and dies

Who is liable???

McGhee v National Coal Board [1973] 1 WLR 1



- ❑ C exposed to brick dust, which can cause dermatitis
- ❑ Some of the exposure was non-negligent (innocent exposure)
- ❑ Some of the exposure was negligent (guilty exposure)
- ❑ Impossible to know which bit of brick dust causes dermatitis – whether innocent or guilty exposure
- ❑ Held: D liable in full

Fairchild v Glenhaven Funeral Services Ltd [2003] 1 AC 32



Facts:

- ❑ Cs had worked for various Ds all of whom had negligently exposed Cs to asbestos.
- ❑ Cs contracted mesothelioma, a fatal disease with a long latency period caused by asbestos.
- ❑ Mesothelioma might have been caused by an accumulation of fibres, or just a single fibre, this was not medically known, but once caused it did not get worse.

Held:

- ❑ Ds all liable in full (joint and several liability)

Fairchild v Glenhaven Funeral Services Ltd [2003] 1 AC 32



- “There is no way of identifying, even on a balance of probabilities, the source of the fibre or fibres which initiated the genetic process which culminated in the malignant tumour” – “rock of uncertainty” (Lord Bingham, [7])
- “Were the law otherwise, an employer exposing his employee to asbestos dust could obtain complete immunity against mesothelioma ... claims by employing only those who had previously been exposed to excessive quantities of asbestos dust. Such a result would reflect no credit on the law.” (Lord Bingham, [33])



Barker v Corus [2006] UKHL 20

- ❑ C exposed to asbestos by D1, by D2, and while self-employed
- ❑ C contracted mesothelioma

Held:

- ❑ Ds only liable in proportion to the extent they increased the risk



Barker v Corus [2006] UKHL 20

“Consistency of approach would suggest that if the basis of liability is the wrongful creation of a risk or chance of causing the disease, the damage which the defendant should be regarded as having caused is the creation of such a risk or chance. If that is the right way to characterise the damage, then it does not matter that the disease as such would be indivisible damage. Chances are infinitely divisible and different people can be separately responsible to a greater or lesser degree for the chances of an event happening, in the way that a person who buys a whole book of tickets in a raffle has a separate and larger chance of winning the prize than a person who has bought a single ticket.”

(Lord Hoffmann, [35])

Tea scenario #3



- ❑ D1, D2, and D3 each add a drop of kryptonite to C's tea
- ❑ Suppose that each time you drink a drop of kryptonite you have a 1% chance of being poisoned. Sometimes you are fine, but 1% of the time you die.
- ❑ C drinks the tea, and dies

Result: D1, D2, and D3 each liable for 1/3 of damages